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CONGRESS, INTERNATIONAL NARCOTICS POLICY, AND THE ANTI-DRUG ABUSE ACT OF 1988

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THE CONGRESS OF THE UNITED STATES exerts greater influence over foreign policy than do its counterparts in other nations. This influence extends to formulation of US policy regarding control of the international narcotics trade, a subject on which the Congress has chosen to assume a leading role. The formal policymaking role of the Congress in this area is embodied in legislation on international narcotics (including appropriation of funds) and in oversight. The Congress also exercises its influence in an informal way through consultation, unofficial advice, public education, and legislative prodding in the drafting and conduct of that policy.

The congressional role in narcotics policymaking is notably affected by its committee structure, in which numerous committees may exercise some degree of jurisdiction over narcotics-related issues. As a result, not only has there been widespread involvement of the Congress in formulating narcotics policy, but there has also been considerable fragmentation of that policy as congressional initiatives have been compartmentalized within the jurisdictional domains of various committees.

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Overall, Congress' approach to dealing with the narcotics traffic abroad may be characterized as oriented toward : (1) reduction of supply, (2) bilateral arrangements (as opposed to multilateral ones), and (3) a preference for the "stick" rather than the "carrot." The Anti-Drug Abuse Act of 1988 may signal major changes in US narco-policy in these three areas.

CONGRESSIONAL ROLE IN INTERNATIONAL NARCOTICS CONTROL AS PART OF AN OVERALL EXPANDED ROLE IN FOREIGN POLICY

THE US CONSTITUTION DIVIDES the power to make foreign policy between the executive and legislative branches, but in such a way that each branch shares in the process and plays an important, though differing, role;[1] however, the question of precisely which branch has final responsibility is not clearly defined. At some times, the Congress may delegate certain functions to the executive while claiming those functions for itself at others. What is clear is that although the executive branch is entrusted with the execution of foreign policy, the two branches constantly influence, and interact with, one another (Collier, 1986; Frank and Weisband, 1979).

Since the early 1970s, Congress has asserted (and expanded) its role in foreign policy. This development has been based primarily on its constitutional powers to declare war, to regulate foreign commerce, and to make appropriations (i.e., the "power of the purse"). Three noteworthy examples of such efforts include passage of the War Powers Resolution, the 1976 amendments to the Arms Export Control Act, and the 1975 amendments to the Foreign Assistance Act. These measures ascribe to the Congress an active role in (1) decisions to deploy troops, (2) the sale of arms to foreign entities, and (3) the determination of standards of conduct, particularly in the area of human rights, as a requirement of eligibility for foreign states to receive US assistance.[2]

This role of the Congress as a leading actor in the development of US narcotics policy must be evaluated within (a) the general context of a domestic furor over drug abuse and (b) an ongoing — and, in recent decades, accelerated — tug-of-war between the executive and legislative branches over control of foreign policy.

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Because narcotics control has become a hot political issue, the Congress can be expected to become increasingly involved in formulating US policy as it relates to this subject.

CONGRESSIONAL ROLE SHAPED AND LIMITED BY LEGISLATIVE ORGANIZATIONAL STRUCTURE

INTERNATIONAL NARCOTICS CONTROL is a multifaceted problem. It may be approached as a foreign relations problem, as a family and/or health problem, as a law enforcement problem, as a defense/national security problem, as a problem in judicial rules and practices, as an allocation of resources problem, as a regional and/or border problem, as an agricultural and foreign trade problem,[3] as a banking problem, as an intelligence problem, as a science and research problem, and as a terrorism-connected problem.

Congress deals with national problems through a network of standing committees, select committees, special caucuses, working groups and task forces. Generally, committee jurisdictions reflect the complex network of agencies in the executive branch which congressional committees fund and oversee. Altogether, there is a total of 53 committees and subcommittees in the House of Representatives and 21 committees and subcommittees in the Senate which currently have jurisdiction over some aspect of the US national drug-abuse policy (Hardy, 1988).

For example, some of the important standing committees which are now involved in issues related to the control of the international narcotics traffic include: the Senate Foreign Relations Committee (and its Subcommittee on Terrorism, Narcotics, and International Operations), the House Foreign Affairs Committee (and its Task Force on International Narcotics Control), the Armed Services Committees, the House Ways and Means Committee, the Appropriations Committees, the Banking Committees, the Government Operations Committees, the Judiciary Committees, the Merchant Marine and Fisheries Committees, and the Agriculture Committees.

Major select and special committees involved in international narcotics control issues include the Select Intelligence Committees and the House Select Committee on Narcotics Abuse and Control

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(which lacks the authority to receive or report bills). The Senate Caucus on International Narcotics Control, modeled after the Helsinki Commission, functions, in many of its aspects, as the Senate equivalent of the House Select Committee on Narcotics Abuse and Control. There are also a number of informal congressional groups which are actively involved in these issues, such as both the Senate and Congressional (House) Border Caucuses, the Senate Drug Enforcement Caucus, and the bicameral Congressional Crime Caucus.

In addition, Congress draws upon a staff of foreign relations, law, science, economics, and other policy specialists at the Congressional Research Service; a budget policy staff through the Congressional Budget Office; a technical advisory staff through the Office of Technology Assessment; and a large investigative and oversight staff through the General Accounting Office which maintains offices in foreign countries. Thus, in the foreign policy field, Congress has equipped itself with substantial resources beyond those available to it from the press, universities, and the executive branch.

All of the offices listed in the paragraph above regularly and consistently provide Congress with an ongoing series of reports, recommendations, and information relating to international narcotics control activities (Perl 1988a; US-OTA, 1987; US-GAO Report, 1988). These reports are required to be nonpartisan, balanced, and objective in nature, thus assuring the Congress the benefits of often-competing perspectives on complex issues, such as that of narcotics control.

Periodically, many in Congress have argued against the complex network of agencies in the executive branch on the grounds that this system promotes fragmentation in formulating and implementing US policy, and that this is particularly true of narcotics control policy. Advocates for this view call for reorganization of the drug policymaking structure in the executive branch, and they suggest the establishment of a more centralized leadership, e.g., the so-called "drug czar" concept (National Narcotics Leadership Act of 1987).[4]

Centralizing the leadership of this policymaking structure however, raises an important question for congressional leaders: if the role of the executive branch becomes more centralized in formulating/implementing narcotics policy, will congressional

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roles — of oversight and legislation — follow suit? Since congressional jurisdiction in this area reflects the labyrinth of federal agencies involved, the argument can be made that the present pattern of decentralized congressional responsibility for drug policy produces an equally fragmented approach to the problem by the Congress. When numerous committees address the same topic, party leaders resort to both formal and informal means — such as the multiple referral of measures — to promote policy integration. In the main, however, just as no executive branch agency has full responsibility for drug policy, no congressional committee has overall central responsibility for drug policy formulation and/or oversight.

One option would be to create a joint committee on narcotics, with key members from both houses of Congress appointed to serve on such a committee. A precedent for this approach was set by the Joint Committee on Atomic Energy, created in 1946 in response to legislation which mandated development of new national policies to meet the challenge of the newly-dawned atomic age. This Joint Committee was vested with exclusive jurisdiction over all legislation that dealt with the nation's developing nuclear program, both civilian and military. All bills, resolutions, and other matters relating to the development, use, or control of atomic energy were required, by law, to be referred to the Joint Committee. In addition, the Committee was assigned "watchdog" responsibility over the then newly-created Atomic Energy Commission, which was required, in turn, to keep the Joint Committee fully informed of its activities.

Another option might be to create, in each house of the Congress, one permanent committee for narcotics affairs, to which broad jurisdictional responsibility would be given. For instance, a select committee on narcotics (modeled after intelligence panels in each chamber), with legislative authority, could be established in both the House and Senate. Finally, as the House of Representatives already has a select committee on narcotics and the Senate does not, the latter might consider changing the status of the Senate Caucus on International Narcotics Control to that of a select committee. However, any of these suggestions would imply the transfer of legislative jurisdiction away from the several powerful standing committees who now wield it to a new locus of jurisdic-

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tion — a prospect which bodes ill for the future of congressional centralization of narco-policy.

THE CONGRESSIONAL ROLE IN INTERNATIONAL NARCOTICS CONTROL LEGISLATION

POLLS IN THE FIRST HALF OF 1988 show that the US general public considers drug control to be the number one issue of domestic concern, and that nearly half of all US respondents regard the drug traffic as the country's number one international problem as well (New York Times, 1988). Because the Congress is aware of this ongoing public concern, it has taken an active role in designing legislation which governs and implements a narcotics control policy for the United States.[5]

Congress may initiate new narco-policy by using legislation to establish new programs, to condition and limit spending, to set new objectives and guidelines, and to authorize and direct the executive branch to undertake certain specific activities. Most noteworthy of such legislative initiatives are the provisions governing control of the international narcotics trade which appear in the Anti-Drug Abuse Acts of 1986 and 1988, and which impose sanctions on countries who play major roles in the production or transshipment of illicit drugs and are uncooperative in the control effort.[6] These provisions represent a major policy reversal of roles previously played by the Congress and the president in the decision to deny assistance to certain drug-producing or drug-transiting countries. Under previous legislation, the president took the initiative in determining whether or not a country would be eligible for foreign assistance. Under the new law, Congress now takes the initiative in making the determination as to which categories of countries will not receive aid, while the role of the president has been reduced to either enforcing the terms of, or seeking exceptions to, this congressional determination.[7]

The Anti-Drug Abuse Acts of 1986 and 1988 link the cooperation of source countries (drug-producing and/or -transiting countries) with the United States in controlling this traffic to the eligibility of those countries for US foreign aid, and under certain circumstances, for US trade benefits. This process, commonly

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referred to as "certification," requires the president at the start of each fiscal year (1 October) to withhold 50% of US foreign assistance designated for the given country, pending a determination of certification on, or after, the first of March.

Then, on 1 March of each year, the president sends to the Congress a list of those countries (who are major producers of, or transit points for, illicit drugs) which he has certified as eligible to receive full US assistance.[8] At that point, the Congress has 45 days of continuous session in which to evaluate the determinations of the president and, if it should so choose, to enact country-specific resolutions of disapproval.

Basically, certification may be justified on two grounds: (1) that the US "vital national interest" precludes continuation of sanctions and that, therefore, aid should be disbursed; or (2) that a country has "cooperated fully" with the United States in curbing illicit narcotics and/or has taken "adequate steps on its own" to prevent drug production, processing, trafficking, drug-related money-laundering, bribery, and public corruption (SEC. 481 [h] [2] [A] of Foreign Assistance Act of 1961).[9] In making a determination based on "cooperation," the president shall consider whether the actions of the government "have resulted in the maximum reductions in illicit production" which have been determined to be achievable, as well as 10 other factors considered indicative of law enforcement cooperation (SEC. 481 [h] [3] of Foreign Assistance Act of 1961). A country which was designated as a major illicit drug-producing or -transiting country in the previous year may not be certified as fully cooperating unless it has, in place, a bilateral narcotics agreement with the United States, or a multilateral narcotics-related treaty to facilitate anti-drug programs and cooperation. If such a country is also a producer of illegal opium, it may not be certified unless it (1) has taken steps to prevent legal opium from being diverted into the illegal market; (2) maintains opium stockpiles at (or below) the level of legal demand; and (3) prevents the illegal cultivation and production of this commodity (SEC. 481 [h] [2] [E] and [C] of the Foreign Assistance Act of 1961 and SEC. 802 of the Trade Act of 1974, as amended).

If the president does not issue a determination for a major drug-source country, or if the Congress should disapprove the determination he makes for a specific country, then some sanctions will

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be imposed automatically, while others may be imposed at the president's discretion.

Mandatory Sanctions Include:

- 50% suspension of all US assistance for the current fiscal year (certain categories of assistance are exempt, such as humanitarian assistance and international narcotics control assistance).
- 100% suspension of US assistance for subsequent fiscal years (unless the country is certified in the interim).
- Voting against loans to a country in the multilateral development banks (SEC. 481 [h] [1] [A] and [B] and SEC. 481 [h] [5] of the Foreign Assistance Act of 1961).
- Non-allocation of a sugar quota (SEC. 803 of the Trade Act of 1974).

Discretionary Sanctions Include:

- Denial of preferential tariff treatment to a country's exports under the Generalized System of Preferences (GSP) and the Caribbean Basin Economic Recovery Act.
- Duty increases of up to 50% of value on a country's exports to the United States.
- Curtailment of air transportation and traffic between the US and the non-certified country.
- Withdrawal of US participation in any pre-clearance customs arrangements with the non-certified country (SEC. 802 of the Trade Act of 1974).

To date, Congress has not decertified any country which the president has designated eligible to receive foreign assistance under the above provisions. In 1987, resolutions to disapprove certification were introduced against the Bahamas, Panama, and Mexico (100th Congress, 1st session, HJ Res. 202, SJ Res. 90-92). Of these, the resolution to decertify Panama, passed by the Senate on 3 April 1987, was the only one to pass either house of Congress. Similarly in 1988, no country was decertified by the full Congress for narcotics non-cooperation. In 1988, resolutions were

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introduced to decertify the Bahamas, Bolivia, Mexico, Paraguay, and Peru.[10] The only one of these to pass either chamber of the Congress was the one to de-certify Mexico, passed by the Senate on 14 April 1988.[11]

In 1988, a Senate resolution was introduced to place Haiti on the list of major illicit and/or trafficking countries, thereby making it subject to certification requirements (100th Congress, 2nd session, SJ Res. 285). After being passed by the Senate (18 April 1988), it was referred to the House of Representatives.

The issue of whether to require certification of Haiti points out a previous shortcoming in the language of the law, which did not clearly define — or require the executive branch to set guidelines to define — exactly what constitutes a "major illicit drug-transit country," in terms of the quantity of drugs which must transit a country in order for it to be thus classified (Foreign Assistance Act of 1961, SEC. 481 [i] [2] and [5]).[12] Neither is "transit" clearly defined. If the destination of the drugs transiting a country were ultimately Europe or Cuba, and not the US, should the country be placed on the list requiring certification?

In addition to the certification requirements of the Foreign Assistance and Trade Acts described above, a number of legislative requirements affecting US international narco-policy are noteworthy in this context. First, Congress has established special certification guidelines for Bolivia, Jamaica, Mexico, Pakistan, and Peru. Second, Congress has, *sub silentio*, established special certification requirements which clearly (but not necessarily only) apply to India, Mexico, and Turkey.[13] Third, in 1981 the Congress amended the Posse Comitatus Act to permit personnel from the Department of Defense (DOD) to operate and maintain equipment which the Department was making available to civilian officials for law enforcement purposes.[14]

CONGRESSIONAL ROLE IN INTERNATIONAL NARCOTICS CONTROL OVERSIGHT

THE ROLE OF CONGRESS in shaping international narcotics policy can be divided into two major parts: legislation and oversight. Not only does the Congress pass laws and fund programs, but it also tries to see that these are properly implemented.

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Congress monitors and influences US narco-policy abroad by regular oversight of US narcotics control efforts by the executive branch. One way it does this is through hearings and investigations which, in turn, frequently result in published transcripts of hearings and reports.

Both the Senate Foreign Relations Committee and the House Foreign Affairs Committee play important roles as it is their responsibility to oversee the Department of State and other foreign affairs agencies. In addition, the House Select Committee on Narcotics Abuse and Control, the Senate Caucus on International Narcotics Control, and the Appropriations Committees of both the House and the Senate regularly oversee international narcotics policy.

The number of congressional hearings, reports, and documents related to international narcotics issues being published has risen steadily, more than doubling in the past ten years. According to a computerized data bank maintained by the General Accounting Office (GAO), the number of such items published by the Congress rose from 20 in 1979 to 46 in 1987. A representative sampling of recent congressional hearings — from the 2nd session of the 100th Congress — on international narcotics control and related issues, includes the following: (1) US Foreign Policy and International Narcotics Control (US Congress-House, 1988a); (2) Worldwide Narcotics Review of the 1988 International Narcotics Control Strategy Report (US Congress-House, 1988c: 3 March); (3) Narcotics Review in South America (US Congress-House, 1988c: 17 and 27 March); (4) Recent Developments in Colombia (US Congress-House, 1988c: 27 January); (5) Drugs and Money Laundering in Panama (US Congress-Senate, 1988a); (6) Narcotics Review in Central America (US Congress-House, 1988c: 10 March); (7) Bahamas and Puerto Rico Drug Interdiction Activities (US Congress-Senate, 1988b); (8) Narcotics Review in the Caribbean (US Congress-House, 1988c: 9 March); (9) Narcotics Review in Southeast/Southwest Asia, The Middle East and Africa (US Congress-House, 1988c: 15 March); and (10) Money Laundering Control Act Amendments of 1988 (US Congress-House, 1988b).

Hearings offer opportunities to both the administration and the committees to make their viewpoints known and to hear recognized authorities outside their respective organizations. They also

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give committees the opportunity to submit written in-depth, follow-up questions. Hearings may also function as the congressional equivalent of the executive press conference, drawing attention to ineffective policies of the executive branch and marshalling public support for proposed legislative reform and/or changes in administration policy.

Two other oversight mechanisms, in addition to hearings, are notification and reporting. Notification requires that an official of the executive branch (usually the president) report to Congress when a specified event occurs. Reporting usually requires that specific information be submitted to the Congress as a formal report, which may be either a *one-time* event or required on a *periodic* basis (Collier, 1988). In March 1986, the Congressional Research Service (of the Library of Congress) identified 19 reporting/notification requirements which were related to the issue of international narcotics control. In September 1988, similar research revealed that the number of such requirements, in law, had risen from 19 to 34, an increase of almost 79% in only two and a half years.[15]

Key notification requirements in this area relate to certification, i.e. determining which major illicit drug-producing/transiting countries should be exempt from congressionally-mandated sanctions (SEC. 481 [h] [1] [A] and SEC. 481 [h] [5] of the Foreign Assistance Act of 1961, PL 87-195, as amended, SEC. 802, 803, and 804 of the Trade Act of 1974, PL 93-618, as amended, and SEC. 2013 of the Anti-Drug Abuse Act of 1986, PL 99-570). By requiring that the president's list of exempt countries — and the reason for their exemption — be given to the Congress before becoming effective, the law affords the Congress an opportunity to monitor and explore the basis of, as well as rationale for, the president's determinations.

The most important of the periodic reporting requirements in this area is the one which mandates that the Department of State submit to the Congress annually, on 1 March, an International Narcotics Control Strategy Report (INCSR) (SEC. 481 [e] of the Foreign Assistance Act of 1961). This report is critical to the certification process because the president bases his determinations of certification on the information it contains. The INCSR — and its September Mid-Year Update (as set out by SEC. 481 [b] [2] of the above Act) — are prepared by the Bureau of International Narcotics Mat-

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ters (BINM) in the Department of State; these are the most widely read and useful reports on the subject of narcotics which are provided by the administration. Often information required by additional periodic reports is included in the INCSR.

An example of an oversight report triggered by a specified event would be one requiring that, pursuant to the provisions of the Anti-Drug Abuse Act of 1986, records on the use of aircraft provided to a foreign country for narcotics control be made available to the Congress upon request (SEC. 485 of this Act). As a result, such records are meticulously maintained against the time such a request might be made; however, to date, Congress has not yet asked to see them. An example of a one-time report is provided by a 1986 law which mandated that the Secretary of State report to the Congress — by 8 February 1986 — on the advisability of encouraging establishment of a Latin American Regional Narcotics Organization. This report was received by the Congress on 30 July 1986 (PL 99-83, SEC. 615 [b]).

Currently, a total of 21 active reporting/notification requirements assist the Congress, in varying degrees, in performing its oversight function (see note 15). These requirements may serve as a trigger for congressional action, such as the one which gives the Congress 45 days to override a presidential determination after it receives notification of same from the president. In addition, reporting requirements often serve to effect a useful compromise between those in Congress who, on the one hand, would prohibit the president from undertaking certain activities (e.g., granting assistance to certain source-countries for illicit drugs) and, on the other hand, those who would prefer to give the president a relatively free hand in such decisions. Finally, by requiring submission of formal reports (such as the INCSR) and data which might not otherwise be available, the Congress obtains the information it needs to influence executive policy and, sometimes, that of other nations, by sensitizing public officials to areas of congressional concern.

CONGRESSIONAL ROLE AS AN INFORMAL ONE

MEMBERS OF CONGRESS MAY INFLUENCE narcotics policy by using informal contacts to provide advice to the executive branch as well as to representatives of foreign governments. Informal con-

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tacts with foreign officials are facilitated by congressional participation in such groups as the Interparliamentary Union, the European Parliament, the Canada-United States Interparliamentary Group, the Andean Parliament, Mexico-United States Interparliamentary Conferences, and by visits of congressional delegations to countries considered by the US to be major illicit drug-producing/transiting nations.

The certification process clearly aids in the exercise of informal influence. This kind of activity moves into high gear shortly before March 1st of each year (the date when the State Department releases its annual INCSR, and the president presents his determinations of certification). During this period, State Department officials carefully assess the sense of the Congress regarding presidential certification of specific countries.

Since Mexico has consistently been the target of congressional resolutions to disapprove presidential certification, it may serve as an example of how this process works. If, on the first of any March, the president were to certify Mexico as fully cooperating, would Congress override this determination? If an informal assessment indicated that the Congress *would* vote to override, then another informal assessment would be made to ascertain whether Congress would override a national-interest certification, or whether Congress would have the necessary two-thirds majority to override a presidential veto of the congressional override of full-cooperation certification. This process gives members of Congress some bargaining power and some input into the whole presidential decision-making process for certification of Mexico — and other nations — since no career employee of the State Department, particularly at the mid-to-upper level, wants to be caught recommending to the president a course of action which will be overridden by Congress. After all, rarely does a president want to be formally and publicly overruled by the Congress, particularly if doing so might make him appear "soft" on drugs.[16]

This certification process also gives Congress an opportunity to exert its informal influence directly on the representatives of the foreign nations which have the potential to be subject to resolutions which disapprove their certification. Throughout the entire February-early April period, members of Congress who hold important positions on narcotics-related committees are visited regularly by government representatives seeking (1) a

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positive exchange of viewpoints, and (2) a better understanding of what the Congress wants, i.e., where it stands on specific issues related to cooperation on narcotics control and how such cooperation might be achieved.

NEW LEGISLATIVE INITIATIVES

Congressional Task Force Proposals

CONCEPT PAPERS ADDRESSING THE DRUG PROBLEM with proposals for an omnibus drug bill were produced in late June and early July of 1988 by both a Senate Democratic Task Force and a Senate Republican Task Force (Moynihan and Nunn, 1988; Dole, 1988; Dewar and Isikoff, 1988; and Congressional Quarterly, 1988: 1936). These concept papers are important because they reveal philosophies and trends of thought current at the time, even if many of the proposals were not ultimately adopted into legislation passed by the 100th Congress.

The Senate Democratic proposal suggested (a) that funding of drug-related programs be increased by (roughly) $3 billion per year; (b) that a comprehensive approach to the drug problem be undertaken, placing all programs under what would amount to a "drug czar" who would coordinate and direct all federal efforts; and (c) that roughly 60% of the resources committed by this proposal be allocated to reduce demand and 40% to reduce supply (at present writing, approximately 75% of all federal anti-drug money is used for supply-reduction activities). Referring to the current imbalance between supply and demand reduction allocations, the proposal noted "that [the] major imbalance in supply/demand efforts may help to explain the apparent failure of past anti-drug efforts."

Title V of the Democratic proposal, entitled "Eradication and International Cooperation," proposed that funds for crop eradication be increased and that more reliance be placed on international cooperation. However, at the same time it cautioned that expectations of what eradication can achieve should be realistic.

The Republican proposal also recommended an increase in anti-drug funding — by $2.3 billion dollars. Other major recommendations were to increase the emphasis on reducing demand

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and to make users more accountable, as well as to create the position of drug-control director. Title V of the Republican proposal, entitled "International Efforts," advocated (a) funding for pilots, aircraft, and weapons needed to arm aircraft involved in narcotics interdiction, as well as maintenance training for such aircraft; (b) establishment of an international drug force to apprehend major traffickers, and for the convening — by the president — of an "International Conference on Combating Illegal Drug Production, Trafficking, and Use in the Western Hemisphere;" and (c) prohibiting foreign assistance to countries which failed to take steps to prevent/punish corruption that was drug-related. Finally, it suggested additional criteria for the president to consider in making his determinations as to whether or not a country was cooperating fully with the United States in narcotics-control activities. The criteria were noteworthy in that all related to law enforcement activity — whereas existing law at the time required that the president give greatest consideration to achieving maximum reduction in production of illicit drugs (SEC. 481 [h] [3] of the Foreign Assistance Act of 1961).

The Anti-Drug Abuse Act of 1988

Elements from the above proposals, both Democratic and Republican, have been incorporated into the 758-page Anti-Drug Abuse Act of 1988 (100th Congress, 2nd session, PL 100-690, HR 5210).[17] This Act, a composite of (often differing) versions of House and Senate bills, passed by a vote of 346 to 11 in the House, and by voice vote in the Senate, in the early morning hours of 22 October 1988.

The 1988 Act builds on the Anti-Drug Abuse Act of 1986, and much of its content is concerned with extending and expanding existing programs (PL 99-570). The Act authorizes additional federal anti-drug expenditures for fiscal year 1989 (FY 1989) of $2.7 billion, bringing the total of US funds budgeted for drug control under the Act to $5.5 billion for FY 1989. However, the Congress provided only $991 million of the $2.7 billion new authorization, due to the budgetary constraints imposed by the Gramm-Rudman-Hollings Act for deficit control. Of the funds ap-

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propriated for FY 1989, under the Act, 56% are for supply-reduction programs and 44% for demand-reduction programs.

Major provisions of the 1988 Act include: (1) authorizing additional funds for law enforcement and drug-abuse education and treatment programs; (2) establishing new record-keeping controls over chemicals used in the manufacture of illegal drugs; (3) establishing penalties for diversion of such precursor chemicals into illegal-drug manufacture; (4) denying certain federal benefits to drug offenders; (5) prohibiting awards to federal contractors who fail to maintain drug-free workplaces; (6) imposing the death penalty on drug kingpins for certain drug-related killings; (7) creating a cabinet-level position of federal "drug czar" in the executive office of the President; (8) enhancing civil and criminal penalties against drug users (including up to $10,000 in civil fines); and, overall, (9) strengthening international narcotics control programs.

Title IV of the Act, the "International Narcotics Control Act of 1988," assigns to the Secretary of State responsibility for coordinating all US assistance to support international efforts to combat production and trafficking of illegal drugs (SEC. 4601 of the Anti-Drug Abuse Act of 1988, PL 100-690). For FY 1989, it authorizes $101 million for international narcotics control programs ($2.5 million more than in FY 1988), $5 million for rewards for information on narco-terrorists, and $23 million for machine-readable visas.

Specific provisions of Title IV:

- call upon the President to seek the views of OAS member nations on the creation of a Latin American regional anti-narcotics force and to explore the concept of similar forces in other regions of the world (SEC. 4101 of 1988 Anti-Drug Abuse Act);
- call upon the president and the United Nations to pursue establishment of an international drug force (SEC. 3102 and 4103 of the above Act);
- call upon the president to begin international discussions relating to establishment of an international criminal court

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to try drug traffickers and others who commit international crimes (SEC. 4108 of the above Act);

- call upon the president to convene an international conference on combating illicit drug production, trafficking, and use in the Western Hemisphere;
- call upon the Secretary of State to consult with heads of other US agencies and with governments of other Western Hemisphere nations concerning creation of a comprehensive, integrated, multinational plan to combat the international cocaine trade (SEC. 4105 of the above Act);
- call upon the Department of State to establish a regional anti-narcotics training center in the Caribbean (SEC. 4106 of the above Act);
- earmark $500,000 for the testing and use of safe and effective herbicides for aerial eradication of coca (SEC. 4202 of the above Act);
- earmark $3.5 million for narcotics-related military assistance programs in Latin America or the Caribbean (SEC. 4205 of the above Act);
- earmark $1 million of military assistance funding for weapons to arm aircraft used in narcotics eradication and interdiction *and* not less than $2 million for narcotics-related military education and training (SEC. 4203 of the above Act);
- permit military assistance, education and training funds to be used to provide weapons, ammunition, and training directly to foreign anti-drug, law enforcement units for anti-narcotics use if the recipient countries have democratic governments and if they do not engage in consistent patterns of gross violations of internationally-recognized human rights (SEC. 4204 [e] and 4205 of the above Act);
- permit the Export/Import Bank to extend credit for sale of defense articles or services to countries requiring certification which have democratic governments if the president certifies that such sales are in the national interest (SEC. 4703 of the above Act);

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- authorize a minimum of $1 million for narcotics control assistance to *non*-major drug-transiting countries (SEC. 4301 of the above Act);
- authorize $3 million for US contributions to multilateral and regional drug abuse programs ($2 million for UNFDAC and $600,000 for OAS-sponsored projects) (SEC. 4107 of the above Act);
- provide for the re-allocation of funds from countries not certified to those fully cooperating (SEC. 4206 of the above Act);
- deny passports to individuals convicted of drug felony offenses (SEC. 4603 of the above Act).

Other provisions of Title IV revise the certification process by:

- requiring the president to establish numerical standards and guidelines for determining which countries are major illicit drug-transit nations, and to notify Congress, each October 1st, of the final list of countries likely to require determinations of certification (SEC. 4405 and 4401 of the above Act);
- giving the Congress 45 — instead of 30 — days of continuous session to decertify countries certified by the president as exempt from trade and aviation sanctions (SEC. 4408 of the above Act);
- exempting assistance for narcotics education and awareness activities from funding subject to certification sanctions (SEC. 4403 of the above Act);[18] and
- downgrading the former requirement that the president, when making certification determinations, give foremost consideration to maximum achievable reductions in illicit production. Hereafter, reductions in illicit production are but one of *many* factors to be considered by the president. New factors include whether the government: (1) has taken the necessary steps to eliminate — to the maximum extent possible — narcotics-related bribery and public corruption; (2) has, as a matter of policy, facilitated narcotics production or distribution; (3) has any senior official involved in the drug

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trade; (4) has investigated aggressively cases in which US drug enforcement agents have suffered violence with the complicity of foreign law enforcement officers and energetically sought to bring such perpetrators to trial; (5) has responded with reasonable cooperation to US requests to assist DEA activities, including requests for aerial hot pursuit; (6) has made necessary changes in legal codes (i.e., new conspiracy laws and asset-seizure laws) to combat narcotics traffickers effectively; (7) has expeditiously processed US extradition requests relating to narcotics trafficking; and (8) has refused to give safe haven to known traffickers in addition to processing narcotics-related extradition requests of other countries expeditiously (SEC. 4407 and 4408 of the above Act).[19]

In addition, Title IV of the Act contains a number of country-specific provisions:

- making FY 1989 security assistance for **Bolivia** contingent upon presidential certification that Bolivia is implementing legislation which: (1) establishes legal coca requirements; (2) licenses the number of hectares required for legal production; (3) makes unlicensed coca production illegal; and (4) makes unlicensed coca possession and distribution illegal (SEC. 4302 [a] of the above Act).
- conditioning foreign assistance certification of Bolivia for FY 1989 upon presidential certification that Bolivia has entered into a narcotics cooperation agreement with the United States; has fully achieved eradication targets of that agreement; and has begun a program of forced eradication of illicit cultivation if voluntary eradication goals are not being met or are not continued (SEC. 4302 [b] of the above Act).
- requiring that the US development assistance Chapare project agreement with Bolivia for FY 1989 contain a clause that project activities be suspended if coca eradication goals in the agreement are not attained, and requiring that future agreements with Bolivia for projects to be carried out in areas of no known illicit cultivation contain a clause suspending development activities if the project area is not kept free of illicit coca cultivation (SEC. 4302 [c] of the above Act).

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- cancelling earlier earmarking of $15 million foreign assistance appropriations for narcotics interdiction and control programs in Bolivia (SEC. 4302 [d] of the above Act).
- requiring the president, when evaluating the certification of **Peru**, to give special consideration to progress made in meeting eradication targets of the previous year (SEC. 4303 [a] of the above Act);
- conditioning USAID development assistance to Peru for the Upper Huallaga Valley Project upon the project's effectiveness in reducing coca production, distribution, and marketing (SEC. 4303 [b] of the above Act).
- authorizing $15 million in FY 1989 for defense equipment for **Colombia**, and $5 million to protect officials and members of the press against narco-terrorist attacks (SEC. 4305 of the above Act);
- permiting (by amendment of the Foreign Assistance Act) more than six members of the US armed forces to be assigned to carry out US international security assistance programs in Colombia (SEC. 4305 of the above Act).
- exempting Colombia from Foreign Assistance Act prohibitions on training or financial support to foreign police forces (SEC. 4305 of the above Act; SEC. 660 of the Foreign Assistance Act of 1961).
- directing the president, when making FY 1989 certifications, to consider the response of **Mexico** to US proposals to establish joint agreements on border air apprehension and surveillance activities (SEC. 4304 of the above Act).
- limiting narcotics control assistance to Mexico to $15 million (SEC. 4304 of the above Act).
- urging the government of Mexico to cooperate fully with the US in drug law enforcement matters, including prosecution and trial of those involved in the murder of DEA Agent Enrique Camarena Salazar and the torture of Agent Victor Cortez (SEC. 4304 of the above Act).
- encouraging the government of Mexico to furnish the US with banking information to facilitate US prosecution of

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narco-terrorists who use Mexican financial institutions to launder profits (SEC. 4304 of the above Act).

- requiring the president, when evaluating the certification of **Pakistan**, to consider the extent to which Pakistan is: (1) destroying illicit laboratories and prosecuting their owner/operators; (2) putting major traffickers out of business; and (3) changing legal codes to permit more effective prosecution of traffickers, by such measures as new conspiracy and asset-seizure laws (SEC. 4306 of the above Act).
- requiring periodic reports on: (1) the involvement of the government of **Laos**, or senior officials thereof, in the illicit drug trade; and (2) any assistance other governments in the region may provide in the distribution of illicit drugs from Laos (SEC. 4309 of the above Act).
- urging the US government to "press" the government of **Afghanistan**, and to work with the *mujahadeen*, to reduce production and trafficking in areas under their control (SEC. 481 [h] [2] [E] of the Foreign Assistance Act of 1961; SEC. 802 of the Trade Act of 1974 as amended by SEC. 4407/4408 of the Anti-Drug Abuse Act of 1988).

Additional country-specific requirements which do not single out certain countries by name would, in effect:

- require that the FY 1989 certification of **India** be contingent upon whether that government has taken steps to prevent significant diversion of its legal opium crop into the illicit market, to reduce its opium stockpile, and to eliminate illicit cultivation and production (SEC. 4406 of the Anti-Drug Abuse Act of 1988, PL 100-690);[20] and
- exempt **Turkey** from potential non-certification in FY 1989 (SEC. 4503 of the above 1988 Act).

Finally, the Act includes a number of miscellaneous and additional provisions which:

- prohibit the provision of US foreign aid and assistance under the Arms Export Control Act to individuals or entities known or believed to be convicted of any domestic or foreign narcotics violation, and to individuals who have been

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directly involved in — or who have facilitated — illicit drug-trafficking (SEC. 4503 of the above Act).

- require the president to submit to the Congress an annual report on the assets provided by the US Government during the preceeding fiscal year to support anti-narcotics efforts (SEC. 4601 [b] of the above Act).
- provide for reimbursement to the US Department of Defense the additional cost of services used in providing international narcotics control assistance (SEC. 4506 of the above Act).
- direct the US Secretary of State to place greater emphasis on updating extradition treaties and on negotiating mutual legal assistance treaties with major illicit drug-producing and -transiting countries (SEC. 4605 of the above Act).
- direct the Secretary of State and the Attorney General to develop model extradition treaties, model mutual legal assistance treaties, and model comprehensive anti-narcotics legislation (SEC. 4605 of the above Act).
- urge the Secretary of the Treasury to negotiate with foreign finance ministers to establish an international currency control agency which would: (1) serve as a central database for international drug enforcement agencies; (2) collect and analyze currency transaction reports filed by member countries; and (3) encourage adoption by member countries of uniform cash transaction and money-laundering statutes (SEC. 4701 of the above Act).
- urge the Secretary of the Treasury to negotiate international agreements to ensure that foreign financial institutions maintain adequate records of large US currency transactions, and to establish mechanisms for US law enforcement officials to obtain such records (SEC. 4701 of the above Act).
- require the Secretary of the Treasury to submit an interim report to Congress within one year (and a final report within two years) on the outcome of negotiations to maintain and to obtain currency transaction records (SEC. 4071 of the 1988 Act).[21]
- require the president to impose penalties and sanctions against narcotics money-laundering countries (1) which have jurisdiction over financial institutions substantially

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engaged in transactions involving proceeds of narcotics trafficking affecting the United States; (2) which have not reached an agreement with the US on exchanging records of such transactions; and (3) which are not negotiating in good faith to reach such an agreement. Such penalties may be waived or delayed if the president certifies to the Congress that the national interest does not preclude their imposition. Penalties include prohibiting such persons, institutions, or entities from participating in any US dollar-clearing or wire-transfer system, and from maintaining an account in an institution chartered under US federal or state law. Financial institutions in countries targeted for penalties shall be exempt from their imposition, however, if they "maintain adequate records" (SEC. 4702 of the 1988 Act).[22]

OBSERVATIONS AND CONCLUSIONS

A CAREFUL READING AND ANALYSIS of legislation, reports, hearings, policy statements, and bills of the most recent Congress, in areas relating to international narcotics control, permits the following observations and conclusions:

1. Overall Role of Congress. The overall role of Congress in the formulation of international narcotics policy may be characterized as: (1) oriented to reduction of supply, (2) oriented to bilateral agreements, and (3) oriented more to using the "stick" than the "carrot." The role of Congress in international narco-policy has increased dramatically over the past several years and can be expected to become even more assertive in the future.

2. Certification Process. The certification process will continue to serve as an important mechanism through which the Congress can press its own assessment of specific nations in international narco-policy. This process and the role and influence of the Congress appear likely both to expand and to become more active. Although one can argue that the process may not always be effective in persuading foreign nations to cooperate in the anti-drug fight, it is difficult to argue that the certification process has not proved an effective vehicle by which the Congress has been — and is — able to exert influence upon the executive branch. Congress will not soon give up the power it has acquired in this

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policy area, one which has become increasingly important to the US public. It is also likely that the Congress will continue to require new types of narcotics-related certification. New certification requirements concerning cooperation on money-laundering issues offer but one example of what may well prove to be an ongoing trend.

3. General Criteria for Certification. Formerly, Congress had instructed the president, when making his determinations of certification, to give *foremost* consideration to the ability of a foreign government to achieve the maximum reduction in its production of illicit drugs. However, the Congress has now downgraded the importance of this requirement to just one among many factors which the president must take into consideration. More and more, the Congress is engaged in adding new criteria for presidential consideration — such as having a bilateral narcotics agreement with the US, or taking necessary law enforcement steps to curb corruption — which stress the overall degree of cooperation in this area and which, at least in part, emphasize cooperation on law enforcement as a factor when making determinations of certification.

4. Country-Specific Criteria for Certification. Congress is increasingly using legislation to establish cooperation "milestones" to guide the president in his certification of certain *specific* countries. Traditionally, such country-specific guidelines have been enacted for Bolivia, Jamaica, Mexico, and Peru. The 1988 Anti-Drug Abuse Act omits Jamaica but includes special criteria for Bolivia, Mexico, Pakistan, and Peru. Although not singled out by name, the 1988 Act also, in effect, includes special certification requirements for India and Turkey.

5. Types of Assistance Exempt from Certification Process. Congress is now examining whether to exempt from certification sanctions that assistance which, directly or indirectly, promotes anti-narcotics programs and goals. The 1988 Anti-Drug Abuse Act exempts from certification sanctions any assistance which has been designated for narcotics education/awareness activities. Congress can be expected to examine whether it should exempt from sanctions, as well, regional development projects of the US Agency for International Development (AID) which promote narcotics-related crop-substitution and income-substitution programs. Another area coming under increasing scrutiny is

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whether — when the national interest requires — US International Military, Education, and Training (IMET) programs should also be exempt from narcotics-related sanctions.

6. Precursor Chemical Regulation. Congress may increase its level of activity in this area despite powerful opposition from business interests representing the chemical and other export industries. According to US Drug Enforcement Administration (DEA) sources, 95% of the chemicals required to process the cocaine reaching the United States are of US origin. Congress has tried to deal with this fact by providing, in Title VI of the 1988 Anti-Drug Abuse Act, for the establishment of new record-keeping controls on export of such chemicals and of penalties for their diversion into the illicit marketplace.

7. Focus on Foreign Drug-Related Corruption. This is a topic with widespread popular appeal which is destined to command increased attention from the Congress. Drug-related corruption of foreign officials is already the subject of congressional reporting requirements, and the 1988 Anti-Drug Abuse Act includes it among the criteria to be applied by the president in arriving at a determination of certification.

8. Increased Multilateral Efforts. Congress is placing more emphasis on multilateral cooperation, consultation, and endeavors in the international "war on drugs." The 1988 Anti-Drug Abuse Act urges formation of regional anti-narcotics forces and a regional anti-narcotics training center, and stresses the need for an integrated regional plan to fight the international cocaine trade.

9. Use of Positive Incentives. Congress is slowly adding positive incentives to the "stick" of the certification process. For instance, the 1988 Anti-Drug Abuse Act provides that funds may be re-allocated from countries which have not been certified to those designated as fully cooperating. The recently passed foreign aid bill for FY 1989 provides similar "carrots", such as earmarking $70 million dollars of assistance for narcotics control programs to be made available to Bolivia, Colombia, Ecuador, Jamaica, and Peru (SEC. 575 of HR 4637, Foreign Operations, FY 1989).

10. Institution of Preventive, Rather Than Reactive, Policies. In the past, congressional international narco-policy has focused primarily on putting out today's fires, rather than seeking to prevent the fires of the future. In contrast, the 1988 Anti-Drug Abuse Act urges increased assistance for narcotics control to

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countries which today are *minor* illicit drug-transit countries and which cooperate with the US in its efforts to control this traffic.

11. Changes in Funding and Resource Allocation. Congress and the US public are much more sensitive than in the past to the symbiotic relationship which exists between drug-producing and drug-consuming nations. A consensus is emerging that major increases in funding are needed to combat the drug problem, and that resources may have to be shifted, gradually, away from a major reliance on reducing supply to greater efforts to reduce demand as well, and, consequently, to domestic — and, to a lesser extent, overseas — anti-drug programs. The 1988 Anti-Drug Abuse Act increases the overall level of funding authorized for anti-drug activity by approximately $2.6 billion, with $506 million currently available for outlays under existing budgetary constraints. This $506 million is to be divided fairly evenly between programs designed to reduce supply and those which try to reduce demand. Since current funding allocates approximately 25% to demand-reduction and 75% to supply-reduction programs, the Act's initial funding provisions appear to indicate a gradual shift, by the Congress, to commit more resources to reducing demand.

12. Increased Integration and Centralization of Policy. Congressional anti-drug policy, both national and international, increasingly stresses the need for a more integrated approach to the problem. Inherent in this approach is a gradual acknowledgment that neither interdiction alone, nor eradication alone, nor education or rehabilitation alone, holds the key to resolution of the international drug problem. The drug problem is being viewed less as a Latin American/Asian source problem and more as one of a shifting global supply, meeting a growing global demand. The congressional response — via the 1988 Anti-Drug Abuse Act — has been to encourage integration of US anti-drug efforts abroad with those of the region, and to seek greater centralization and integration of US drug policy at home by creating an Office of National Drug Control Policy, to be led by a cabinet-level federal official.

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1. Congress has the power to raise and support armies, provide and maintain a navy, declare war, levy and collect taxes and duties, pay debts, regulate foreign trade, to make all necessary and proper laws, and to make appropriations (US Constitution, ART. I, SEC. 8). The President is Chief Executive and Commander-in-Chief of the Army and Navy and has the power to receive ambassadors and other public ministers (US Constitution, ART. II, SEC. 1). Treaties and appointments of ambassadors and other public ministers are made by the president with the advice and consent of the Senate.

2. In 1973, Congress passed the War Powers Resolution which gives Congress a decision-making role in the deployment of US troops into hostilities by requiring consultation with Congress prior to deployment and by requiring congressional authorization for the ongoing deployment of forces after 60 to 90 days (PL 93-148, 7 November 1973). Amendments to the Arms Export Control Act, passed in 1976, gave Congress the power to prohibit an arms sale by passage of a joint resolution (SEC. 36 [c] of PL 90-629, 82 Stat. 1320, as amended by SEC. 211 [a] of PL 94-329, 90 Stat. 740). In addition, since the 1970s, Congress has consistently used the power of the purse to set conditions on the disbursement of foreign aid, particularly to countries which engage in a consistent pattern of gross violations of internationally recognized human rights (SEC. 116 of the Foreign Assistance Act of 1961, PL 87-195, 75 Stat. 424, as amended by SEC. 310 of PL 94-161, 89 Stat. 849, 20 December 1975).

3. Note that according to a recent study by the Congressional Research Service, narcotics products comprise more than half the value of our nation's agricultural imports (Womach, 1988). Note also that the DEA has reported that the US may be the world's largest producer of marijuana by the early 1990s and, soon after that, a net exporter (Kraar, 1988).

4. Modified provisions of the Act were passed by the House of Representatives as an amendment to the proposed Omnibus Drug Initiative Act of 1988.

5. Note that of 1,099 bills introduced in the House of Representatives from 1 January to 1 July 1988, 245 (or about 1 in 5) have dealt with some aspect of the drug issue (Rasky, 1988).

6. Title II of PL 99-570 (100 Stat. 3207, SEC. 2005) which amends SEC. 481(h) of the Foreign Assistance Act of 1961, and SEC. 2013 of PL 99-570, which *sub silentio* establishes special certification requirements for Mexico; see also Title IX, which adds SEC. 802-805 to the Trade Act of 1974. The latter provisions include discretionary trade and aviation sanctions against uncooperative major illicit trafficking and/or transiting countries.

7. From the text of SEC. 481(h) of the Foreign Assistance Act of 1961, prior to its amendment by PL 99-570 (Perl, 1986a).

8. See Appendix for text of (1 March 1988) presidential determination of certification to the Congress.

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9. For text and detailed analysis of these, as well as related provisions, see Perl (1988); see also SEC. 802 of the Trade Act of 1974 as amended.

10. For the resolutions passed in the 2nd Session of the 100th Congress for the following countries: Bahamas (HJ Res. 202); Bolivia (HJ Res. 493); Mexico (SJ Res. 268); in which the Senate vote was 63 for disapproval and 27 against; Paraguay (HJ Res. 495); and Peru (HJ Res. 497-498).

11. Note that, at this time (March 1988), Panama was not certified by the president (see Figure 1). In addition, Congress, in December 1987, had already passed legislation restricting US assistance to Panama, prohibiting funds for joint military exercises, and prohibiting Panamanian sugar exports until the US president certifies a number of areas, including Panamanian progress in assuring civilian control of the armed forces, and until freedom of the press and other constitutional rights are guaranteed (PL 100-202, SEC. 570-1). Similar language for FY 1989 is expected to pass the Congress (see 100th Congress, 2nd session, HR 4637).

12. Current law specifies numerical standards for major illicit narcotics-producing countries (500 tons of marijuana or coca leaf, or 5 metric tons of opium). Are, for example, Haiti, Honduras, and Venezuela major illicit-transit countries? (see International Narcotics Control Act of 1988, House Report No. 100-720, part 1, p. 16). Note, however, that SEC. 4405 of the Anti-Drug Abuse Act of 1988 requires the president to set quantitative guidelines for determining major illicit drug-transiting countries (see also SEC. 4401 of the 1988 Act).

13. The Foreign Operations, Export Financing, and Related Program Appropriations Act, 1988 (PL 100-202), SEC. 534 (a). For guidelines applicable to Pakistan, see SEC. 4306 of the Anti-Drug Abuse Act of 1988, PL 100-690. PL 99-570, SEC. 2013, requires suspension of all assistance to countries which — as a matter of government policy or at the direction of any senior official — encourage or facilitate the production or distribution of illegal drugs and which, among other things, do not grant US-DEA agents the right of aerial hot pursuit, and in which US-DEA agents have been threatened with violence (since 1 January 1985) with the complicity of a foreign law enforcement official. Such suspension of assistance may be waived by a special presidential vital national interest certification. On 1 August 1988, the president certified both Laos and Mexico under the national interest exception to this law. For a discussion of the content of this law and its effect on US-Mexican Relations, see Perl, (1986b: 239).

14. The Posse Comitatus Act codifies a longstanding tradition of not using the military for civilian law enforcement in an active or direct role. The 1981 amendments to the Act were cited by the administration in Washington as the legal basis for US troop participation in Operation Blast Furnace (in Bolivia, beginning 14 July 1986). For a discussion of the amendments and the US military role in Operation Blast Furnace, see

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THE WHITE HOUSE

WASHINGTON

February 29, 1988

Presidential Determination
No. 88-10

MEMORANDUM FOR THE SECRETARY OF STATE

SUBJECT: Certifications for Narcotics Source and Transit Countries under P.L. 99-570

By virtue of the authority vested in me by Section 481(h)(2)(A)(i) of the Foreign Assistance Act of 1961, as amended by the Anti-Drug Abuse Act of 1986 (P.L. 99-570), I hereby determine and certify that the following major narcotics producing and/or major narcotics transit countries have cooperated fully with the United States, or taken adequate steps on their own, to control narcotics production, trafficking and money laundering:

The Bahamas, Belize, Bolivia, Brazil, Burma, Colombia, Ecuador, Hong Kong, India, Jamaica, Malaysia, Mexico, Morocco, Nigeria, Pakistan, Peru and Thailand.

By virtue of the authority vested in me by Section 481(h)(2)(A)(ii) of the Act, I hereby determine that it is in the vital national interests of the United States to certify the following countries:

Laos, Lebanon, and Paraguay.

Information for these countries as required under Section 481(h)(2)(B) of the Act is enclosed.

I have determined that the following major producing and/or major transit countries do not meet the standards set forth in Section 481(h)(2)(A):

Afghanistan, Iran, Panama and Syria.

In making these determinations, I have considered the factors set forth in Section 481(h)(3) of the Act, based on the information in the International Narcotics Control Strategy Report of 1988.

You are hereby authorized and directed to report this determination to the Congress immediately and to publish it in the Federal Register.

Ronald Reagan

Figure 1. Facsimile of White House document.

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Perl (1986c); for issues relating generally to use of the military in narcotics interdiction, see Perl and Surrett (1988).

15. Note that of these 34, 13 were not active in that they were one-time reports which have been completed.

16. Note also that Congress will have 45 days of continuous session to hold hearings on the president's determinations before it votes to mobilize public support for whatever course of action it favors.

17. The Act is divided into ten titles, of which Title IV is cited as the International Narcotics Control Act of 1988. For conceptual background on many of the provisions contained in Title IV, see 100th Congress, 2nd session, House of Representatives, Report No. 100-720 (Part 1) and Report No. 100-861; see also — same session of Congress — House Committee on Foreign Affairs Markup on HR 4181, 15 June 1988. Note that amendments to the proposed National Defense Authorization Act (same session of Congress, S-2355 and HR-4264) relating to the role of the military in narcotics interdiction, are not contained in the proposed 1988 omnibus drug bill. The proposed National Defense Authorization Act was vetoed by the President on 3 August 1988, but was passed again, in modified form, by the Congress on 28 September 1988.

18. Note that the language of this SECTION appears to require technical correction. However, the intent was clearly to exempt from sanctions activities contemplated under SEC. 126(b)(2) of the Foreign Assistance Act of 1961.

19. The law retains requirements of SEC. 481(h) of the Foreign Assistance Act of 1961 that the president shall also consider whether a country has taken maximum legal and law enforcement steps: (1) to eliminate illicit drug cultivation, production, and trafficking, and (2) to eliminate drug-related money-laundering.

20. The Act provides that in FY 1989 the ban on aid to a major transiting country shall not apply to such a country if the president certifies to the Congress: (1) that drug money-laundering concerns do not apply to the particular country; (2) that the country was a major producer which has effectively eliminated illicit production within the past two years; and (3) that the country is fully cooperating with US anti-narcotics efforts, or has taken adequate steps on its own to (a) satisfy the goals agreed to in a bilateral narcotics agreement or comparable multilateral agreement; (b) prevent drug transshipments to the United States; and (c) prevent and punish narcotics-related bribery and public corruption.

21. Note that the report shall also identify countries which engage in narcotics currency-laundering and which have not reached agreement with the US on mechanisms for exchanging records of such transactions.

22. Note that the term "adequate records" is defined as records of currency transactions in excess of $10,000, including the identity of the person initiating the transaction, the person's business or occupation, and the account or accounts affected by the transaction, or other records of comparable effect.

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